UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF NEW YORK

UNITED STATES OF AMERICA,	No. 6:18-CR-06018-DGL-MWP
v.	Hon. David G. Larimer
JEFFREY BERNECKY,	**CERTIFICATION OF JEFFREY BERNECKY**
Defendant.	**(28 U.S.C. § 1746)**

Jeffrey Bernecky declares as follows:

I. Background

1. I am the defendant in this case. I make this declaration in support of my motion to clarify or modify the conditions of my supervised release and for appointment of counsel. I have personal knowledge of the facts stated here, except where I say otherwise.

2. On June 7, 2018, this Court sentenced me to 120 months in prison, to be followed by ten years of supervised release. The Judgment was entered on June 12, 2018. Doc. 28. At sentencing I was represented by Mark D. Hosken, an Assistant Federal Public Defender appointed to represent me.

3. Both of my convictions are for child-pornography offenses: possession in this case, and possession and distribution in my earlier case, No. 6:11-CR-06045. Neither conviction involved physical contact with a child, and I have never been charged with any offense involving physical contact with a child. **[Confirm.]**

4. My term of supervised release began on July 30, 2026. I live in Rochester, New York. I have worked **[full-time]** at my current job since **[month and year]**.

5. Since my supervision began, I have followed every instruction my probation officer and my treatment providers have given me, including the instructions described in this declaration, which I am asking the Court to clarify. **[Confirm. If there is anything Probation or treatment**

staff could point to as not following an instruction or a Treatment Contract term, including the platform-approval term in paragraph 17, tell us before you sign.]

II. Intake and Standard Condition 12

6. On or about **[July 30, 2026]**, at **[the Probation Office in Rochester]**, **[my probation officer, name]** went over my conditions of supervision with me and had me sign **[describe the document]**. **[Page 4 of the Judgment has a signature line for the defendant and the probation officer, under a statement that the officer went over the conditions and gave the defendant a copy of the Judgment. Say whether that is what you signed or whether it was a different form, and whether you were given a copy. If you have it, it will be attached as Exhibit E.]**

7. The conditions I was required to sign included Standard Condition 12 in the form printed on page 4 of my Judgment: "If the probation officer determines that you pose a risk to another person (including an organization), the probation officer may require you to notify the person about the risk and you must comply with that instruction. The probation officer may contact the person and confirm that you have notified the person about the risk." **[Confirm the wording matches. If you do not have a copy, this will say "to the best of my recollection."]**

8. No one at the Probation Office showed me or told me about the replacement language in the Amended Standing Order attached as Exhibit D, and no one told me that Standard Condition 12 had been changed in 2019. **[Confirm.]**

9. I have never received notice of, been asked to attend, or attended any proceeding at which this Court considered whether I pose a risk of committing further crimes against another person. No one has told me that the Court has made that determination. **[If you have checked the docket in this case, add: "I reviewed the docket in this case on (date) and found no order making that determination."]**

10. Exhibit D is a true copy of the Amended Standing Order entered by this Court on March 22, 2019, *In re United States v. Boles* (Geraci, C.J.). **[Say where the copy came from, for example the Court's website or the Clerk's Office.]**

III. The Treatment Provider and Its Documents

11. **[My probation officer referred me to]** R.K.K.S. Mental Health Counseling PLLC for the sex-offense-specific treatment and mental-health treatment required by my Judgment. **[Confirm who chose R.K.K.S. and how.]** I began treatment there on or about **[date]**.

12. On July 30, 2026, I signed the Authorization to Release Confidential Information attached as Exhibit B. It authorizes "RKKS Forensic Counseling" to release information about my treatment to the United States Probation Office for the Western District of New York. **[Say where you signed it and who gave it to you: Probation or R.K.K.S.]** Exhibit B is a true copy of the form I signed.

13. On August 19, 2026, as part of my intake at R.K.K.S., I signed the three-page Treatment Contract attached as Exhibit A. **[Say who gave it to you, and whether anyone told you that you had to sign it to be accepted into treatment or that refusing would be reported to Probation. Give the words used as best you remember.]** Exhibit A is a true copy of the Treatment Contract I signed.

IV. Instructions About Sexual Partners, Dating, and Online Platforms

14. The Treatment Contract requires me to disclose all my intimate partners to treatment staff and, before engaging in a sexual relationship, to provide treatment staff "acceptable proof of informed consent," which "includes disclosure of my offense history in full." Ex. A at 3. No one at R.K.K.S. has explained to me what would count as acceptable proof. **[Confirm, or describe what you were told. If anyone has also told you that you need your therapist's permission before a sexual relationship, say who, when, and what was said.]**

15. On or about **[date]**, **[name and role: therapist, probation officer, or both]** told me that if I use an adult dating or social-media application, such as Grindr, my profile must display my conviction. **[Confirm who said it, when, whether it was spoken or written, whether the person pointed to any written rule, and whether it covers only dating apps or every social-media profile.]**

16. Since my release I have gone to work and come home. I have not pursued a dating or sexual relationship. The reason is the requirements described in paragraphs 14 and 15: any relationship would have to begin with a full account of my offense history to the other person and proof of that person's consent to treatment staff, and any dating profile would have to announce my conviction. **[Confirm, and add a sentence in your own words about why this has kept you from pursuing a relationship.]**

17. The Treatment Contract also states that "the use of any platforms including but not limited to (social media, dating sites, email, blog/discussion forums, gaming services, text apps, photo sharing sites, chat rooms, etc.) should be approved by treatment staff prior to use." Ex. A at 3. **[Say whether anyone at R.K.K.S. has told you which platforms are approved or how to get approval, and whether you asked for approval of the games described in paragraph 23. Call us before you answer this one.]**

V. The Monitoring Program

18. On or about **[date]**, I received the Computer Monitoring Program Participant Agreement attached as Exhibit C from **[my probation officer, name]**. **[Say whether you signed it and on what date.]** Exhibit C is a true copy of that agreement.

19. Monitoring software was installed on my phone, a **[make and model]**, on or about **[date]**, by **[who installed it or walked you through installing it, for example the monitoring company]**.

20. **[Name and role]** told me that the software can take a full screenshot of my phone's screen at any time. **[Say who told you and when. If you were told or shown anything else about what the software captures, add it here.]**

21. No one from the Probation Office or the monitoring company has told me that anything on my phone is protected from being viewed, or that there is any procedure to keep the monitoring from capturing or reviewing lawful material, such as a typed conversation with another adult in a game. No one has told me whether my communications with this Court, or my drafts of legal

papers, are excluded. Exhibit C does not address the subject, and I have not been given any written description of how the monitoring handles that material. **[Confirm. If you were told anything on this subject, say who, when, and what.]**

22. I am representing myself on this motion **[and in a pending proceeding in Monroe County Court concerning my sex-offender risk level]**. I prepare my legal papers, including this motion, on **[name each device]**, which **[is / are]** monitored. **[Be exact. Probation will read this paragraph.]**

VI. Instructions About Online Communication

23. I enjoy playing video games. Until **[month]** 2026, I played games on the phone described in paragraph 19. Some of these games let players exchange typed messages. **[Confirm, and confirm you played only on that phone. Naming the games is optional.]**

24. In those games I exchanged typed messages with other players whom I did not know personally. In those conversations I stated that I would not speak with anyone under 18. **[If true, add: "To my knowledge, every person I exchanged messages with was an adult," and say how you knew.]**

25. On or about **[date]**, my probation officer, **[name]**, told me that she had noticed I had been speaking with people in online games, and that I needed to stop. I had not told her about those conversations. **[Confirm both sentences.]**

26. She told me that I may not speak with anyone while playing online games, because there is no way to verify their age or identity, and that I may not speak with anyone I do not personally know. She told me I may speak with people I know in real life. The instruction is not limited to people under 18. It applies to adults I do not personally know. **[Confirm whether she said adults were included or whether that is how you understood "anyone." Confirm whether the instruction covered only online games or all online communication, such as social media, messaging apps, and forums.]**

27. No one has told me that any person I exchanged messages with in an online game was under 18. **[Confirm.]**

28. No one told me to stop playing games. After my probation officer's instruction, I stopped playing them altogether, and I have not played since. **[Confirm, and add a sentence in your own words about why you stopped playing entirely. If also true, add: "I have not communicated online with anyone I do not personally know since then."]**

VII. The 17-and-Older Event

29. On or about **[date]**, I attended **[describe the event]** in **[place]**. Admission was limited to people 17 and older. **[Say how the age limit was enforced, for example an ID check at the door. If true, add: "I did not have contact with anyone I knew or believed to be under 18 at the event."]**

30. Afterward, **[name and role at R.K.K.S.]** told me that I should have told treatment staff about the event before I went, because an event with that age limit had "potential for pornographic material." **[Say whether there was any sexual material at the event.]**

31. On or about **[date]**, my probation officer told me that I should not have gone, because minors could have been there, including minors who could have snuck in without my knowing. **[Say whether "snuck in" was her word or the gist, and how Probation learned of the event.]** I said that a grocery store carries a much greater chance of being near minors than an event like that. She answered that "a judge wouldn't see it that way."

VIII. Family Gatherings

32. I have no biological or adopted children.

33. After this Court sentenced me, and while I was in prison, my sister had **[number]** children. They are now **[ages]**.

34. My parents are not together. My mother, my stepfather, and my father know about my convictions. **[Say whether your sister knows.]**

35. My family gets together for Thanksgiving, Christmas, and **[other holidays or occasions]** at **[my mother's home / my father's home / both]**. **[Name any children, such as cousins' children, who are usually there.]**

36. My sister's children are not expected at the gatherings I would attend. But my sister can stop by without warning, and when she does, her children may come with her. No one in my family plans Christmas to the minute; people come and go through the day. If my sister arrived with her children while I was there, I do not know whether my conditions would require me to leave. **[Confirm, and change anything that does not fit how your family does the holidays. If your probation officer has told you what to do in that situation, say what she said.]**

37. I would like to spend Thanksgiving and Christmas this year with my family. I have not been at a family holiday gathering since **[year]**. **[Confirm.]**

38. **[I have / I have not]** asked my probation officer for permission to attend family gatherings where my sister's children may be present. **[If you asked, say when and what she said.]**

39. If the Court approves, then whenever my sister's children are at a family gathering I attend, an adult family member who knows about my convictions will be present, and I will not be alone with any child. **[Confirm these terms work for you.]**

IX. Treatment Participation and Statements by Treatment Staff

40. I have attended every scheduled treatment session since I began at R.K.K.S. **[Confirm. List any session you missed or were late to, and why.]** I will continue to attend every scheduled session, complete every assignment I am given, and discuss in treatment the conduct for which I was convicted.

41. During an individual session at R.K.K.S. in the week of **[September 28, 2026]**, my therapist, **[name]**, told me that sex offenders are not allowed to have or take Viagra, because it increases sex drive. She said that for Viagra prescriptions, a search of the sex-offender registry is run to make sure the person is not on it. I asked about people who have a real medical need, such as

trouble achieving an erection in a healthy adult relationship. She said that we still are not allowed. The subject did not come up because of anything about me. **[Confirm.]**

X. Counsel

42. I cannot afford to hire a lawyer to represent me on this motion. I will submit a CJA Form 23 financial affidavit. **[Confirm.]**

I declare under penalty of perjury that the foregoing is true and correct.

Executed on October ___, 2026, at Rochester, New York.

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Jeffrey Bernecky
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